

26SMCV03224 26SMCV03224

County: los-angeles

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Case Number: 26SMCV03224 Hearing Date: August 20, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

SALEM FIVE CENTS SAVINGS BANK,

Plaintiff,

v.

VAALBARA, LLC, et al.,

Defendants.

Case No.: 26SMCV03224

Hearing Date: August 20, 2026

[TENTATIVE] order RE:

PLAINTIFF's application for RIGHT

TO ATTACH ORDER AND FOR

TEMPORARY PROTECTIVE ORDER

BACKGROUND

This is a breach of contract case. Plaintiff Salem Five Cents Savings Bank loaned \$250,000 to Defendant Vaalbara LLC (“Borrower”), pursuant to a term note (“Note”) that bore interest at the rate 7.52% per annum, with monthly payments of principal and interest in the amount of \$3,850.23, and with a maturity date of November 22, 2029. (Verified Complaint (“Compl.”) ¶ 8; Ex. A [Note].) The Note expressly stated that the proceeds were to be used for commercial purposes in connection with the business of the Borrower only and not for personal, family, or household purposes. (Note at 3.)

To induce Plaintiff to extend the loan, Defendant James Burrows executed an unconditional written Guaranty (the “James Guaranty”), whereby he jointly and severally guaranteed the prompt payment and performance of all liabilities and obligations of Borrower to Plaintiff. (Compl. ¶ 9; Ex. B.) Similarly, Defendant Emily Prescott Burrows signed an identical unconditional written Guaranty (the “Emily Guaranty”). (Compl. ¶ 10; Ex. C.) Both Guaranties contain broad waivers of presentment, demand, notice, and protest; waivers of any right to require Plaintiff to proceed against the Borrower or any collateral first; and waivers of subrogation and contribution until Plaintiff has been paid in full. (James Guaranty at 3-4; Emily Guaranty at 3-4.)

Plaintiff fully performed its obligations by funding the loan. (Compl. ¶ 11.) Defendants breached the Note and Guaranties by failing to make the required monthly payments when due. (Compl. ¶ 12.) As a direct result, Plaintiff is entitled to accelerate the entire unpaid balance. (Term Note at 3; Guaranties at 1.)

On or about May 13, 2026, Plaintiff served written notice of default and a demand for payment. (Compl. ¶ 14.) Defendants failed to make payment. (Id.) As of June 3, 2026, the amounts due and owing are no less than \$158,247.20, including \$153,251.50 in principal, \$4,225.66 in accrued interest, and \$770.04 in late charges. (Compl. ¶ 15.) Interest continues to accrue. (Id.; see Term Note at 2.)

Plaintiff attests, based on a review of recorded Grant Deeds, that James and Emily Burrows are the owners of record of certain real properties in California, as follows: (1) 44879 Dinely Drive, Three Rivers, California 93271 (owned by Defendants James Burrows and Emily Prescott Burrows); (2) 45486 Oak Grove Drive, Three Rivers, California 93271 (owned by Defendants James Burrows and Emily Prescott Burrows); and (3) 1967 Marguerite Street, Palm Springs, California 92264 (owned by Defendant James Burrows individually). (Appl. at 2, Item 9.c.)

According to Plaintiff, two of these properties – 44879 Dinely Drive (held jointly) and 1967 Marguerite Street (held by James Burrows individually) – are currently listed for sale on the publicly available real estate website Zillow.com. (Appl. at 3, Declaration of Shawn P. Ford; see also, Appl., Declaration of Alexander D. Wall, Exs. 1 & 2.) Plaintiff argues that the imminent sale of these properties would make them unavailable to levy by Plaintiff and would render any future judgment uncollectible, thereby causing Plaintiff irreparable harm. (Id.)

LEGAL STANDARD

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this article for a right to attach order and a writ of attachment by filing an application for the order and writ with the court in which the action is brought.” (Code Civ. Proc., § 484.010.)

The application shall be executed under oath and must include:

a statement showing that the attachment is sought to secure the recovery on a claim upon which an attachment may be issued;

a statement of the amount to be secured by the attachment;

a statement that the attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based;

a statement that the applicant has no information or belief that the claim is discharged or that the prosecution of the action is stayed in a proceeding under the Bankruptcy Act (11 U.S.C. section 101 et seq.); and

a description of the property to be attached under the writ of attachment and a statement that the plaintiff is informed and believes that such property is subject to attachment.

(CCP § 484.020.)

“The application [for a writ of attachment] shall be supported by an affidavit showing that the plaintiff on the facts presented would be entitled to a judgment on the claim upon which the attachment is based.” (Code Civ. Proc., § 484.030.) “The declarations in the moving papers must contain evidentiary facts, stated ‘with particularity,’ and based on actual personal knowledge with all documentary evidence properly identified and authenticated.” (Hobbs, 73 Cal.App.4th at 79–80 (citing CCP § 482.040).)

The Court shall issue a right to attach order if the Court finds all of the following:

The claim upon which the attachment is based is one upon which an attachment may be issued.

The plaintiff has established the probable validity of the claim upon which the attachment is based.

The attachment is not sought for a purpose other than the recovery on the claim upon which the attachment is based.

The amount to be secured by the attachment is greater than zero.

(Code Civ. Proc., § 484.090.)

Statutory attachment procedures are purely creations of the legislature and as such “are subject to ‘strict construction.’” (Hobbs v. Weiss (1999) 73 Cal.App.4th 76, 79; see also Nakasone v. Randall (1982) 129 Cal.App.3d 757, 761.) A judge does not have authority to order any attachment that is not provided for by the attachment statutes. (Jordan-Lyon Productions, Ltd. v. Cineplex Odeon Corp. (1994) 29 Cal.App.4th 1459, 1466.)

“In contested applications, the court must consider the relative merits of the positions of the respective parties and make a determination of the probable outcome of the litigation.” (Hobbs, 73 Cal.App.4th at 80.)

DISCUSSION

Plaintiff's Claim is One for Which An Attachment May Issue

“An attachment may be issued only in an action on a claim or claims for money, each of which is based upon a contract, express or implied, where the total amount of the claim or claims is a fixed or readily ascertainable amount not less than five

hundred dollars (\$500) exclusive of costs, interest, and attorney's fees." (Code Civ. Proc., § 483.010(a).)

Here, Plaintiff's claim is for money and is based on express, written contracts (i.e., the Note and Guaranties). The total amount of the claim is for \$175,747.20 which is well in excess of the \$500 minimum, exclusive of costs, interest, and attorney's fees. The amount due is fixed and readily ascertainable. As of June 3, 2026, Defendants owe Plaintiff no less than \$158,247.20, consisting of a principal balance of \$153,251.50 together with accrued interest and late charges, all of which are readily ascertainable from the terms of the Note.

Where, as here, the defendants include natural persons, subdivision (c) further requires that the claim arise out of the conduct of a trade, business, or profession (as opposed to a loan of money "primarily for personal, family, or household purposes"). (Id. § 483.010(c).) The Note expressly provides that the loan proceeds to Borrower were to be used "for commercial purposes in connection with the business of the undersigned only and will not be used for personal, family, or household purposes." Accordingly, Plaintiff's claim is one upon which a right to attach order may issue under Code of Civil Procedure section 483.010.

Plaintiff Has a Probable Validity of Prevailing

"A claim has 'probable validity' where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim." (Code Civ. Proc., § 481.190.) To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff. (Richman v. Hartley (2014) 224 Cal.App.4th 1182, 1186.)

It is more likely than not that Plaintiff will obtain a judgment against Defendants because each of the elements of its claim have been established by the evidence. First, there are written contracts signed by Plaintiff and Defendants, the Note and Guaranties. (Exs. A-C.) Second, Plaintiff has performed its obligations under the Note by funding the loan. Third, Borrower breached the Note by failing to repay the principal and interest, and the individual Defendants failed to honor their Guaranties to repay the Borrower's obligations to Plaintiff. Finally, Defendants' breach resulted in damages to Plaintiff, which has not been paid the monies owed under the Note.

Attachment Is Sought Only to Secure Recovery on the Claim

Plaintiff attests it is seeking attachment solely to preserve assets to satisfy a judgment on this commercial debt. (Appl. at 1, item 4.) Plaintiff has no improper purpose in seeking relief.

The Amount to Be Secured Exceeds Zero

The attachment amount sought is \$175,747.20, which includes the principal balance, accrued interest and late charges as of June 3, 2026, plus estimated recoverable costs (\$2,500) and attorneys' fees (\$15,000). (Appl. at 2, Item 8.) The attachment amount therefore exceeds zero.

A Temporary Protective Order Is Necessary to Prevent Irreparable Injury

Code of Civil Procedure section 486.010 authorizes the court to issue a TPO upon a showing that the plaintiff will suffer "great or irreparable" injury if the order is not issued before a noticed hearing can be held. Code of Civil Procedure section 485.010 further provides that the "great or irreparable" injury requirement is satisfied "it may be inferred that there is a danger that the property sought to be attached would be ... made unavailable to levy." (Cal. Civ. Proc. Code § 485.010(b)(1).)

Here, Plaintiff attests that two of the three properties in which Defendants hold record title are currently listed for sale on Zillow.com. (Appl. at 3, Declaration of Shawn P. Ford.) A sale to a bona fide purchaser before the hearing on the Right to Attach Order would make those properties permanently “unavailable to levy,” frustrating the purpose of the proposed attachment and potentially rendering judgment uncollectable. This imminent risk of transfer warrants the granting of a TPO to preserve the status quo and prevent Defendants from liquidating the very assets needed to satisfy a future judgment.

ONCLUSION

For the foregoing reasons, the Court GRANTS the application for writ of attachment and the application for a temporary protective order.

DATED: August 20, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court